

CORY SHEPHERD (388372) — COMPLETE PACKAGE

Leave and payment, 3 July – 3 September 2026 · covering letter, original emails, tables, and the two policies relied on

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CORY SHEPHERD (388372) — LOGAN HOSPITAL SWITCHBOARD, METRO SOUTH HEALTH

Part 1: the sick-leave coding since 3 July · Part 2: payment · 3 September 2026
To: Chloe Taylor; PayrollMetroSouth · Cc: Jacqui Roberts; Emily Petering

Dear Chloe, and Payroll,

Two parts. The attachment has four sections: the original emails that bear on this, as sent and received, from 2 July to this morning, in six tabs; two tables, the leave requests and the payment position by fortnight; a copy of HR Policy C13, Payment of salaries and wages; and a copy of Directive 12/24, Special Leave. I refer to both in Part 2.

PART 1 — THE "SICK LEAVE – NO PAY" CODING

I have been asking for leave to be applied correctly since 3 July 2026, and the coding I am objecting to began before that.

Your email of 2 July said that unless I advised otherwise, shifts I had not worked would be processed as sick leave (Tab 1). On 3 July at 2:49 pm you said you would continue to process as "Sick leave / Sick leave no pay" because the leave type had not been confirmed (Tab 1). At 3:18 pm the same day I confirmed it: annual leave, not sick leave without pay (Tab 1). "Sick Leave – No Pay" has been applied every day since, and I have asked for it to be corrected on 10 July, 13 July, 28 July, 5 August, 24 August, 31 August and today (Tabs 2 to 6).

"Sick Leave – No Pay" has been applied to my record from 3 July 2026, the day I was held out of the workplace — and, under your email of 2 July, to the shifts not worked before that date. It was applied against my written instruction of the same day.

This objection was made on the day the coding was first raised with me, before any question of long service leave eligibility arose, and on every occasion since. It is not a request made after the fact. I ask that the coding be corrected from the first date it was applied, and that the correction be made before my long service leave eligibility is recalculated in the audit.

PART 2 — PAYMENT

An ad hoc payment can be made, and it is the process that exists for exactly this situation.

Queensland Health's HR Policy C13, Payment of salaries and wages (QH-POL-188, 23 June 2025), section 8, describes the ad hoc payment process as one that "enables employees to request a payment that was missed or requires correction outside of the regular pay day schedule without waiting for the next pay cycle". The certified agreement requires pay that is not correct to be corrected in a timely manner (EB12 cl 3.8.1), and the agreed mechanism for that is an ad hoc payment (EB11 cl 3.8.3). One was processed for me on 11 March 2025 (log 4045255). The statement that a payment cannot be processed before 9 September describes the pay cycle. It is not the ad hoc process, and I do not accept it.

The pay that was missed. I was paid nothing on 26 August for the fortnight 3 to 16 August, coded "Sick Leave – No Pay" against my written instruction, and nothing on the three pay days before it. That fortnight is the "most recent prior pay period" in the policy's definition, and it is the payment I am asking for by ad hoc payment now. Process 24926366 covers 17 to 30 August only; I ask that it be confirmed in the 9 September run, but it does not answer the fortnights before it.

What the policy requires of the line manager. Section 2 provides that a line manager, when notified by an employee of an incorrect wage payment, "must take all steps to rectify the error including ... preparing and submitting further forms". I gave that notice on 3 July and on every fortnight since. The attendance variation form submitted for 17 to 30 August is the corrective form; I ask that the same form be submitted today for 3 to 16 August, and for 3 July to 2 August, with the leave type I have instructed, and that the ad hoc payment pending under enquiry 4471091 be processed against it. Section 8 also provides that where an employee is unable to access myHR the line manager can lodge the ad hoc request on the employee's behalf; I could not access myHR until 2 September. The request was lodged on Wednesday 2 September, within the policy's timeframe for payment before the next pay day.

Under section 9 of the same policy I also ask for a review of my pay entitlements from 3 July 2026, since my pay has been continuously incorrect from that date, to run with the leave audit Payroll has opened.

If the ad hoc payment is refused, I ask for the reason in writing, the policy relied on, and the name of the officer who decided it. If it is not resolved locally, I will ask the union to escalate it to the payroll point of contact provided for in the certified agreement (EB12 cl 3.8.2).

Separately, and so that I am paid from here:

1. Long service leave from 13 July 2026, not 4 September. On the dates recorded in the agreement under which I was reinstated — commencement 25 March 2019, reinstatement effective 20 September 2024 with continuity preserved — seven years' continuous service fell due on 25 March 2026, and long service leave was available to me from that date. I have no other leave that could cover the period from 13 July: my recreation leave balance is 51.31 hours. I therefore apply for long service leave on full pay at 76 hours per fortnight from 13 July 2026, continuing until further notice. If Payroll maintains 4 September as the eligibility date, the difference between the two dates is the unpaid coding I have objected to since 3 July, and I ask that the audit resolve it in my favour. In the meantime, and without prejudice: (a) my recreation leave, 51.31 hours, is to be applied to 3 to 16 August so that the ad hoc payment can be made now, to be re-credited when long service leave is applied from 13 July; and (b) long service leave is to be entered from 4 September at the latest so that it is in the fortnight ending 13 September, and no further "Sick Leave – No Pay" is to be entered from that date.
2. Special leave on full pay from 3 July 2026. There is a third leave type, and it is the one that fits an absence the employer directed. Directive 12/24, Special Leave, applies to every employee covered by the certified agreement (EB12 cl 9.12). Clause 6.1 provides that a chief executive "may approve paid leave for employees for any purpose, with duration appropriate to the purpose of the leave", beyond five days where the chief executive "considers that circumstances warrant" it. Clause 6.5 provides that in determining an application the chief executive "must consider ... the impact on the employee if the requested leave is not approved". Special leave is not debited from any leave account. I applied for it on 28 July 2026 (Tab 3, point 4) and again on 5 August (Tab 4), for each day from 3 July on which I was certified fit with restrictions, available, and directed not to attend. The reply of 29 July did not address it, the reply of 30 July did not address it, and no decision has been communicated since. I ask that the application be put to the delegate now, and that I be given the decision in writing, with reasons, including how the clause 6.5 considerations were weighed: the reason is an absence I did not choose; the duration is 62 days and continuing; and the impact of refusal has been no income since 15 July. If special leave on full pay is approved from 3 July, the recreation leave and long service leave applied for above are to be re-credited in full.
3. Written confirmation of what will be paid on 9 September under process 24926366 — the gross amount, the hours, and the leave types debited — and whether it was processed at 76 hours or at 0.5 FTE. If at 0.5 FTE, the balance to be adjusted in the next run. The last reduced-hours arrangement ended on 28 June 2026 and nothing has replaced it.
4. The daily "Sick Leave – No Pay" entries. Section 6 of the policy permits a line manager to submit leave on an employee's behalf only where the employee's request for leave is documented in writing and the supporting documents are retained. My written request of 3 July was for annual leave. I ask for a copy of the written request and the supporting documents on which each "Sick Leave – No Pay" entry since 3 July was made.

Everything applied for is on the basis set out in my application of 31 August, paragraph 4 — under protest and subject to re-credit. I remain certified fit with restrictions and available to work.

Kind regards, Cory Shepherd Employee number 388372 0417 400 227 coryshepherd1@hotmail.com

THE ORIGINAL EMAILS — LEAVE REQUESTED FROM 3 JULY 2026, AND THE ELIGIBILITY EXCHANGE OF 2–3 SEPTEMBER

Cory Shepherd (388372) · six original email documents as sent or received, in date order · nothing retyped · 3 September 2026

Each tab is the original document, unaltered. Where an original is a thread, the earlier emails appear beneath the later ones in the usual way. The covering email refers to these tabs.

Tab	What it is	Pages
1	2–3 Jul 2026 — Taylor ↔ Shepherd, "Cory - ECC/Leave Type": 2 Jul 2:38 pm sick-leave default; 3 Jul 2:49 pm "Sick leave / Sick leave no pay"; 3 Jul 3:18 pm ANNUAL LEAVE confirmed	2–5
2	7–13 Jul 2026 — Forrest / Injury Management ↔ Shepherd, "ECC further information (MSH-INJ-5795)": 10 Jul 8:35 am paid time, not leave; 13 Jul 4:39 pm "I ask again"	6–17
3	28 Jul 2026, 5:39 pm — Shepherd → Injury Management (cc union): incorrect application of EB12, Award and QH policies; special leave applied for (point 4); coding contested	18–23
4	5 Aug 2026, 7:30 am — Shepherd → Taylor / Injury Management: Stage 1 reply; recreation leave not consented to; special leave on full pay asked for instead	24–28
5	18–28 Aug 2026 — Roberts ↔ Shepherd (cc Petering), "Follow up on Enquiries": 24 Aug 11:13 am leave to be applied and AVAC submitted; 28 Aug 2:18 pm AVAC update sought	29–40
6	31 Aug – 3 Sep 2026 — Shepherd ↔ Taylor ↔ Payroll (cc Roberts, Petering): 31 Aug 10:59 am application (LSL from 13 Jul, A/L on exhaustion, AVAC today, under protest); 3:34 pm one fortnight at "0.5 FTE"; 4:06 pm correction; 2 Sep 11:07 am ad hoc payment; 12:42 pm "paid 9 September"; 4:16 pm process 24926366; 3 Sep 9:05 am Payroll "eligibility 04/09/2026"; 10:27 am "cannot be processed prior to 9 September"	41–55

Total: 55 pages including this index.

Re: Cory - ECC/Leave Type

From: Cory Shepherd

coryshepherd1@hotmail.com

To: Chloe Taylor Chloe.Taylor3@health.qld.gov.au

Sent: Friday 3 July at 15:18

Hi Chloe,

Thanks for that. As the time off was due to my medical condition and my paid sick leave is exhausted, could you please process the balance as annual leave rather than sick leave without pay.

On returning the completed Employee Capability Checklist went to the Injury Management team today. It certifies me fit to resume from 3 July 2026. Could you please confirm I'm right to attend, or otherwise let me know my next returning shift.

Kind regards,

Cory

From: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Sent: Friday, July 3, 2026 2:49:32 pm

To: Cory Shepherd <coryshepherd1@hotmail.com>

Cc: Cory Shepherd

<Cory.Shepherd@health.qld.gov.au>

Subject: RE: Cory - ECC/Leave Type

Hi Cory

Thank you for letting me know. As you have not confirmed leave type for the past pay period – I will continue to process as Sick leave / Sick leave no pay

Kind regards,

Chloe

Chloe Taylor

Switchboard Manager | Local Telecommunications Representative | Switchboard Services

Logan Hospital | Metro South | Queensland Health

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Queensland Health acknowledges the Traditional Custodians of the land across Queensland, and pays respect to First Nations Elders past and present.

From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Friday, 3 July 2026 2:35 PM

To: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Subject: Re: Cory - ECC/Leave Type

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Hey Chloe,

I had a long consultation and the doctor filled out the form.

I sent it off to the Injury Management team today.

Kind regards,

Cory

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From: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Sent: Thursday, July 2, 2026 2:38:11 pm

To: Cory Shepherd <Cory.Shepherd@health.qld.gov.au>

Cc: Cory Shepherd <coryshepherd1@hotmail.com>

Subject: Cory - ECC/Leave Type

Hi Cory,

I just wanted to check in to see how you are doing and how things have been progressing for you. I know you had a scheduled appointment with your doctor yesterday as per text message sent on Monday 29th July.

Did your doctor give you any indication when the required documentation will be completed? Until we receive appropriate medical clearance, including a completed Employee Capacity Certificate (ECC), we are unable to facilitate your return to work, please wait for my advice to when your next returning shift will be. Unless you advise me otherwise, I will process your shifts that you have not worked as Sick Leave – Please confirm by Friday 3rd July before 2:00pm.

Kind regards,
Chloe

Chloe Taylor
[Switchboard Manager](#) | [Local Telecommunications Representative](#) | [Switchboard Services](#)
Logan Hospital | Metro South | Queensland Health
P (07) 2891 9190
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**Re: Cory Shepherd_ECC further
information (MSH-INJ-5795)**

From: Cory Shepherd

coryshepherd1@hotmail.com

To: LBH Injury Management

LBH_InjuryManagement@health.qld.gov.au

Cc: Notes - IPEC (notes@solv.com.au)

notes@solv.com.au

Sent: Monday 13 July at 16:39

Good afternoon Michelle,

Thank you for your email. Four matters in response.

1. QSuper. I must correct the position stated in your email. I no longer have an active open QSuper Income Protection claim; that claim is now closed. In any event, the supporting medical documentation could only support a partial payment at most: I am not totally incapacitated. I am certified fit for my existing arrangement. There is no income protection payment that could respond to the present situation, in which I am receiving no shifts at all.

My current loss of income arises from the Health Service's decision not to roster me — which your email itself confirms ("we are unable to support a return to work at this time") — and not from my capacity for work. There is accordingly no income support available to me from that source.

2. Pay. My request, made in each of my previous emails — that rostered shifts during this employer-directed period be treated as paid time and not deducted from my leave — has not yet been answered. Given the above, I ask again. If the Health Service's position is that these shifts will be unpaid or deducted from my leave, could you please confirm that in writing, together with the basis for it, so that I can consider my position.

3. Interim alternative duties. Separately, should the Health Service require further time to assess my return to the Switchboard, I note that I also bring prior skills and experience from within Metro South Health, including in the finance department and in scanning/records. I am ready and willing to perform suitable interim duties of that kind, within my certified capacity, as an alternative to remaining off work unpaid while the assessment is completed. This offer is made to my substantive Switchboard position and certified arrangement, to which I remain ready to return. I would welcome a discussion about how my experience can be used to the benefit of the Service in the interim.

4. Dr Ma. My consent for the Health Service to contact Dr Day Hong Ma for clarification, limited to my present work capacity and the recommended adjustments, stands. As I have now been held out of work since 3 July while certified fit, could you please send any questions to Dr Ma promptly, copy me for my records, and advise the timeframe within which my return will be decided once his response is received.

I remain certified fit, ready, and available to work my rostered shifts.

Kind regards,
Cory Shepherd

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From: LBH Injury Management

<LBH_InjuryManagement@health.qld.gov.au>

Sent: Monday, 13 July 2026 15:53:26

To: Cory Shepherd <coryshepherd1@hotmail.com>

Cc: Notes - IPEC (notes@solv.com.au)

<notes@solv.com.au>

Subject: RE: Cory Shepherd_ECC further information
(MSH-INJ-5795)

Good afternoon Cory,

Thank you for your email and for providing your response to the further information requested.

I acknowledge that you have advised you do not wish to provide further information regarding the WorkCover matter referenced in your Employee Capability Checklist (ECC) and that you have provided consent for the Health Service to contact your treating practitioner, Dr Day Hong Ma, for clarification regarding your current work capacity and the recommended workplace adjustments.

As mentioned below in the email sent to you from Ms Forrest on 7 July 2026, we are currently unable to safely support or accommodate a Graduated Return to Work Plan that meets your medical requirements. For us to consider your request to return to duties further we require further medical clarification.

Once this information has been received and appropriately reviewed, the Health Service will be in a position to assess whether a return to restricted duties can be facilitated, and we will advise you of the outcome as soon as practicable.

As you currently have an active open QSuper Income Protection claim, any payments that are applicable to you receiving, would be facilitated by them. You should contact your claim manager James Zappia at QSuper and inform them that we are unable to support a return to work at this time.

Should you have any questions in the meantime, please do not hesitate to contact me.

Kindest Regards

Michelle Harrison

Injury

Management Consultant | LBHS HR Team 1

Human Resources
Logan and Beaudesert Hospital and Health Service
4/3-5 University Drive, Meadowbrook Qld 4131

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a. Mon-Fri 8am - 4pm

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Please be advised that we are currently transitioning into Solv, a new Injury Management Case System. Our documents and communications may change appearance slightly and you may even receive communications from us via the @Solv.com.au email pathway, as this is a new email pathway, please ensure you are regularly checking your Junk folder in your email accounts and save the @solv to your frequent emails so you do not miss any communications. Please note these emails are legitimate and are from us here at lbh_injurymanagement@health.qld.gov.au. If you have any concerns, please reach out to us via the above contact details.

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Friday, 10 July 2026 8:35 AM
To: Lyndelle Forrest <Lyndelle.Forrest@health.qld.gov.au>
Cc: LBH Injury Management
<LBH_injurymanagement@health.qld.gov.au>
Subject: Re: Cory Shepherd_ECC further information

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Good morning Ms Forrest,

Thank you for your email of 7 July 2026, which I have only now had the opportunity to consider. Apologies for the delay in responding.

I am certified fit to return to work from 3 July 2026 and am ready and available to return. The ECC records the same reduced work arrangement I have performed for approximately the past twelve months. That arrangement is not new; it is now formally documented by my treating practitioner.

I note that the adjustments identified in the ECC appear to be accommodated by existing practice. Your email confirms that Switchboard operators are not expected to manage or resolve consumer complaints, and that current rostering provides more than 10-hour breaks between shifts and is published in advance. Together with my existing shift arrangement, this appears to address the recommendations in the ECC.

I ask that my return to rostered shifts be facilitated, with any remaining clinical clarification obtained in parallel.

Regarding the further information requested:

- **Workplace matters:** These matters are the subject of proceeding WC/2024/227 before the Queensland Industrial Relations Commission. The Health Service is legally represented through Metro South Legal Services, reference K-LM26/729. I will not provide further particulars through this return-to-work process. Any questions about those matters should be directed to Metro South Legal Services.

- **Clinical recommendations:** The recommendations are those of Dr Day Hong Ma. I am not able to interpret or expand on clinical recommendations. If clarification is required, I consent to the Health Service contacting Dr Hong Ma directly, limited only to my present work capacity and the recommended adjustments.
- **Report dated 13 February 2025:** I do not consent to providing this report through this process. It contains sensitive information beyond what is necessary to implement the ECC recommendations. My present fitness for duty is addressed in the ECC and may be clarified by Dr Hong Ma if required.

If the Health Service decides not to roster me pending its assessment, please confirm that these shifts will be treated as paid time and will not be deducted from my leave, as I am certified fit and available to work.

I remain available to commence at my next rostered shift.

Kind regards,
Cory Shepherd

From: Lyndelle Forrest

<Lyndelle.Forrest@health.qld.gov.au>

Sent: Tuesday, July 7, 2026 10:54:35 am

To: coryshepherd1@hotmail.com

<coryshepherd1@hotmail.com>

Cc: LBH Injury Management

<LBH_InjuryManagement@health.qld.gov.au>

Subject: Cory Shepherd_ECC further information

Good morning Cory

I refer to the Employee Capability Checklist (**ECC**), completed by Dr Day Hong Ma of My Doctor Clinic on 3

July 2026 and returned to the Injury Management Team at 2:30pm that day. It is further noted that due to a section of this document being missing, you were asked to resubmit your ECC for consideration, you sent this on Friday at 3:06pm.

While you have been certified fit to return to work effective from 3 July 2026, this certification is subject to reasonable adjustments being made to your duties and hours of work. As the completed ECC was received late on Friday, 3 July 2026, the Health Service was unable to review Dr Hong Ma's medical recommendations at that time to determine whether the recommended restrictions and adjustments could be reasonably accommodated and whether it was safe for you to return to duty.

I can advise that your ECC has now been reviewed and carefully considered. However, before a final decision can be made regarding your return to the workplace, further information is required. Specifically, it is noted that your treating medical practitioner has advised that there are unresolved workplace matters involving line management. At this stage, the Health Service does not have sufficient information to understand the nature of these matters or assess whether they present any psychosocial hazards or risks that may affect your proposed return to work.

The Health Service remains committed to supporting your safe and sustainable return to work, with your health, safety and wellbeing remaining central to that process. Accordingly, further information is required to enable the Health Service to assess any identified risks, determine whether reasonable adjustments can be supported, and ensure that any return to work is planned and managed in accordance with its obligations under work health and safety legislation.

To assist us in expediting consideration of your reasonable adjustments, please provide further clarification and/or reports referenced below, within seven (7) calendar days.

ECC Recommendation	Further information required
<i>Diagnosis of Major Depressive Disorder with anxious distress, a work-related psychological injury with onset 18 June 2024, with symptoms exacerbated on exposure to identified workplace stressors (complaint handling; being held accountable and blamed for failures of others; unpredictable rostering.</i>	The Health Service is seeking to better understand the work-related psychological injury for which you are currently receiving treatment from a psychologist. It is also noted that Dr Day Hong Ma has referenced a report from your treating psychiatrist dated 13 February 2025. To date, the Health Service has not been provided with, nor had the opportunity to review, this report. To enable the Health Service to appropriately consider and address these matters, further information and/or a copy of this report is requested regarding the workplace issues referred to in the ECC and their impact on your capacity for work.
Complaint handling No complaint-handling duties, complaints received at the Switchboard to be logged and redirected, not actioned or resolved by Mr Shepherd.	The Health Service understand that the established process for management of complaints is for all patient concerns to be redirection to the Consumer Liaison Services (CLS). There is no expectation for

	Switchboard operators to manage or deal with these matters. Where a consumer raises concerns in relation to a Switchboard employee, these concerns are referred to the Manager, Switchboard or in her absence, CLS. To understand this concern better and adjustments required, please clarify what features of complaint handling are being referenced and you are expected to resolve within this recommendation.
Predictable Rostering practices, minimum 10-hour break between shifts	Rosters are generally published with four (4) weeks' notice, on four-week rotation. Occasionally, in extenuating circumstances these might be delayed. However, all rosters are released with a minimum of two weeks' notice. The Health Service is not aware of breaching this provision and has not received any Workload Concerns to review, can you please clarify the concerns relating to not providing the minimum break

	between rostered shifts? Noting that rostering currently provides more than 10-hour breaks between shifts, however, acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred. Please clarify the specific stressors which may exacerbate symptoms.
Being held accountable and blamed for failures of others	It is unclear what matters you are being held accountable and blamed for based on the failures of others or what these concerns relate to. To-date the Health Service is not aware of any concerns being raised for appropriate management. Further clarity on this would assist in understanding this matter.

Until this information is available and has been appropriately assessed, the Health Service is not in a position to safely facilitate your return to normal duties.

Should you have any further questions or concerns, please do not hesitate to contact me via the details

below.

Kind regards

Lyndelle Forrest
Senior Consultant
Human Resources
Logan and Beaudesert Health Service
[Metro South Health](#) | 

e. Lyndelle.Forrest@health.qld.gov.au | [Chat on Teams](#)
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Response to 2-15 July 2026

correspondence - incorrect application of EB12, Award and QH policies - ECC 3 July 2026 (MSH-INJ-5795)

From: Cory Shepherd

coryshepherd1@hotmail.com

To: LBH_InjuryManagement@health.qld.gov.au

LBH_InjuryManagement@health.qld.gov.au,

Lyndelle Forrest lyndelle.forrest@health.qld.gov.au

Cc: Heath Moran heath.moran@together.org.au,

James Zappia james.zappia@art.com.au

Sent: Tuesday 28 July at 17:39

Dear Michelle / Injury Management / HR,

I refer to your correspondence and Switchboard
management correspondence between 2 and 15 July
2026, including:

- Chloe Taylor, 2 July 2026 — unable to "facilitate" return until a completed ECC; shifts processed as sick leave / sick leave no pay;
- my provision of the completed Employee Capability Checklist (ECC) of 3 July 2026 (Dr Day Hong Ma) while I was rostered and working;
- the same-day direction that I not attend "pending review";
- Injury Management correspondence of 7–13 July 2026 that restricted duties could not be facilitated without further medical clarification from Dr Ma;
- your email of 13 July 2026 to ART that Metro South Health was unable to facilitate my return under the ECC (MSH-INJ-5795 / CLM-317073);
- your email of 15 July 2026 (13:10) — pay sits with QSuper because of a "current" IP claim; alternative duties refused "in any capacity"; WCRA rehabilitation limited to accepted claims; return at employer discretion; further medical about psychosocial risk to my return; and
- leave coding as "income protection no pay" from 13 July 2026.

I remain ready, willing and able to work within the 3 July

2026 ECC. I do not abandon my employment. I am taking industrial advice through Together Union.

I am an HHS administrative employee. The industrial framework that applies is attached. Please respond by reference to each attachment.

ATTACHMENTS

ATT02 — Queensland Public Health Sector Certified Agreement (No. 12) 2025 (EB12) — current agreement

ATT03 — Hospital and Health Service General

Employees (Queensland Health) Award – State 2015

ATT05 — Managing the risk of psychosocial hazards at work Code of Practice 2022 (Qld)

ATT09 — QH-IMP-401-5 Workplace Rehabilitation Standard

ATT10 — QH-POL-210 Reasonable Adjustment (HR Policy G3)

ATT12 — Directive 12/24: Special Leave (applies under EB12 cl 9.12)

ATT13 — QH-POL-231 Special leave (HR Policy C7)

ATT14 — Administration Officer, Switchboard Services (AO3) Role Description

FACTS

The 3 July 2026 ECC certifies me fit for modified duties and reduced hours from 3 July 2026 as a continuation of the existing arrangement. The doctor viewed the AO3 Switchboard position description (ATT14) and recorded that usual switchboard duties remain suitable with stated modifications (including no complaint-handling; limits on peak weekday day/afternoon shifts; predictable rostering; minimum 10-hour break). I was performing work consistent with those limits when I provided the ECC. The same-day direction not to attend disrupted that work. The 28 August 2026 date on the ECC is a review of restrictions — not the start of capacity.

WHAT HAS BEEN WRONGLY APPLIED

1. "Current QSuper Income Protection claim" → ordinary pay sits with ART (your 15 July email)

Wrong application.

- An IP file is not ordinary wages for a permanent employee who is certified fit, ready and available, and directed by the employer not to attend.

- On the material available to me notified by employee (myself) May 2025 and February 2026 and now 3rd July 2026 certification of that partial capacity, ART put benefit payments are not applied from 1 June 2026. Treating the Fund as presently replacing ordinary pay is incorrect on that record. Partial capacity and partial payment does not dislodge this framing.
- IP administration is separate (Mr Zappia). It does not displace ATT02 EB12 cl 6.1 (employment security) or ATT02 EB12 cl 7.1.5(g)–(h) (injury management; management of ill or injured employees).
- Coding "IP no pay" while held out after an ECC is not a correct application of ATT02 or of ATT12/ATT13 (special leave).

2. WCRA rehabilitation only if accepted claim; return purely at "employer discretion" (your 15 July email)

Wrong application.

- Even if WCRA statutory rehab is limited to accepted claims, that does not exhaust your duties under ATT02 (EB12), ATT03 (HHS Award), ATT10 (QH-POL-210) and ATT09 (QH-IMP-401-5).
- ATT10 applies to all Queensland Health / HHS employees and includes temporary reasonable adjustment for rehabilitation/RTW and for capacity restriction — not only accepted workers' compensation claims.
- ATT02 EB12 cl 7.1.5 requires the parties to address injury management, management of ill or injured employees, fatigue, psychosocial issues and the Code of Practice 2022 (ATT05), and security for administrative staff in frontline positions.
- "Discretion" does not correctly authorise indefinite exclusion, refusal of interim duties "in any capacity," and non-payment without applying ATT09, ATT10 and ATT02 Parts 6 and 7.

3. Further medical framing me as the psychosocial risk before return "in any capacity" (your 13–15 July emails)

Wrong application of ATT05 and ATT02.

- ATT05 and ATT02 EB12 cl 7.2 require assessment of psychosocial hazards in the workplace and work system (including workplace risk assessments as requested through an HCF by employer or union).
- The 3 July ECC already identifies workplace stressors (complaint-handling; blame for others' failures;

rostering/fatigue; unresolved line-management matters). Those are workplace issues under ATT05 and ATT02 cl 7.1.5(j) and 7.2.

- Framing psychosocial risk as a personal barrier inside Injury Management / QSuper misapplies ATT02 cl 7.2 and cl 7.1.11 (feedback when WHS matters are raised).
- Workplace psychosocial issues I have raised over more than two years are not properly dealt with by indefinite IM hold-out. That process is not the correct forum under ATT02 cl 7.2.
- I will cooperate with reasonable medical requests that are specific and linked to identified job tasks under ATT14. Open-ended further medical is not a correct precondition to all duties where ATT14 and the ECC already define capacity I have been performing.

4. "Unable to facilitate" / no alternative duties (Chloe 2 July; your 13–15 July emails)

Wrong application of ATT09, ATT10 and ATT02.

- Chloe's 2 July email made facilitation conditional on a completed ECC. I provided that ECC on 3 July while working. Facilitation was then refused and I was directed off — the opposite of facilitating return on the medical basis required.
- The ECC states fit from 3 July as continuation of the existing arrangement and that usual switchboard duties remain suitable with modifications against ATT14. Refusing all duties "in any capacity" does not correctly apply ATT10, ATT09 or ATT02 cl 7.1.5(f)–(h).
- Correct application requires identifying any specific duty and restriction said to be incompatible, what modification was considered, and what was rejected — not a blanket refusal.

5. Leave coding as sick leave / sick leave no pay / "IP no pay" while certified fit and directed not to attend

Wrong application of ATT02, ATT12 and ATT13.

- From 3 July 2026 the relevant absence is employer-directed while I am certified fit and available. That is not ordinary sick leave for that period.
- "IP no pay" is not the correct industrial answer under ATT02 when the employer has directed me off after an ECC.
- ATT02 EB12 cl 9.12 provides that Directive 12/24: Special Leave (ATT12) applies to employees covered by the Agreement. ATT13 QH-POL-231 (C7) also applies.

- Special leave under ATT12 and ATT13 must be applied for employer-directed exclusion while I am ready, willing and able within the ECC. Where the only barrier is refusal to facilitate certified duties, special leave on full pay (or ordinary pay as if at work) must be applied. Please correct coding and identify the delegate and instrument for each day from 3 July.

6. Treating 28 August 2026 as if capacity only starts then

Wrong application of the ECC itself.

- 28 August 2026 is the next review of restrictions. 3 July 2026 is the date fit to commence the certified arrangement. Capacity is certified now.

WHAT YOU MUST APPLY

ATT02 EB12 cl 6.1 — employment security

ATT02 EB12 cl 7.1.5 — injury management; ill or injured employees; fatigue; psychosocial issues + ATT05; admin frontline security

ATT02 EB12 cl 7.2 — psychosocial risk assessments of workplaces

ATT02 EB12 cl 7.1.11 — feedback on WHS matters

ATT02 EB12 cl 9.12 + ATT12 + ATT13 — Special Leave

ATT03 — hours, breaks and rostering with the Agreement

ATT09 — workplace rehabilitation / RTW pathway

ATT10 — reasonable adjustment (including temporary adjustment and capacity restriction)

ATT05 — workplace psychosocial risk

ATT14 — task match to the AO3 role the doctor viewed

REQUESTS — PLEASE RESPOND IN WRITING WITHIN 5 BUSINESS DAYS

1. Facilitate my return under the 3 July 2026 ECC (or a written suitable duties plan implementing it: start date, hours, location, tasks, review date) by applying ATT09, ATT10 and ATT02 cl 7.1.5.

2. Complete a task-by-task match of ATT14 to the 3 July ECC. If you maintain you cannot facilitate, identify each restriction and duty and what was considered and rejected.

3. Be specific about any further medical still said to be required: exact questions; which ATT14 job task each relates to; what on the existing ECC is said to be insufficient.

4. Apply special leave under ATT02 cl 9.12, ATT12 and ATT13 for employer-directed days from 3 July while certified fit and available; correct "IP no pay" / sick no pay coding; identify delegate and instrument.
5. Confirm ordinary pay treatment for periods I was ready and available within the ECC but directed not to attend.
6. Confirm compliance with the direction not to attend is not abandonment or unauthorised absence (ATT02 cl 6.1).
7. Arrange a workplace-directed psychosocial risk assessment under ATT02 cl 7.2 and ATT05.
8. Identify the decision-maker for facilitation, suitable duties, special leave and pay, and the instrument for the 3 July direction not to attend.

I will continue to provide reasonable medical information directed to placement and safety. Please make further requests specific and linked to ATT14 tasks.

My QIRC appeal WC/2024/227 is separate. ART/QSuper is being addressed with Mr Zappia.

I look forward to your written response and a meeting date to facilitate return under the attached agreements and policies.

Yours sincerely,
Cory Lea Shepherd
[0417 400 227](tel:0417400227)
MSH-INJ-5795

**Re: Notice of dispute — clause 1.11 —
attendance, roster, leave and pay from 26
June 2026**

From: Cory Shepherd
coryshepherd1@hotmail.com
To: Chloe Taylor Chloe.Taylor3@health.qld.gov.au,
LBH Injury Management
LBH_InjuryManagement@health.qld.gov.au,
LBH_HR LBH_HR@health.qld.gov.au
Cc: Heath Moran heath.moran@together.org.au,
Emily Petering emily.petering@together.org.au
Sent: Wednesday 5 August at 07:30

Dear Chloe,

Thank you for your response yesterday. My reply is attached. It answers the leave question, sets out my understanding of the position, and asks the questions needed so the correct arrangement can be applied. I have made it a separate document so there is no question about what it is or when it was received.

For payroll purposes, the short position is: I do not consent to my recreation leave being applied, and I have asked that the period be coded as special leave on full pay instead. The detail is in the attachment.

Kind regards,
Cory Shepherd
[0417 400 227](tel:0417400227)

From: Chloe Taylor
<Chloe.Taylor3@health.qld.gov.au>
Sent: Tuesday, August 4, 2026 1:35 PM
To: Cory Shepherd <coryshepherd1@hotmail.com>;
LBH Injury Management
<LBH_InjuryManagement@health.qld.gov.au>;
LBH_HR <LBH_HR@health.qld.gov.au>

Cc: Heath Moran <heath.moran@together.org.au>

Subject: RE: Notice of dispute — clause 1.11 — attendance, roster, leave and pay from 26 June 2026

Hi Cory

I am writing in response to your Stage 1 Dispute dated 3 August 2026, in which you disagree with the decision that has prevented you from attending your rostered shifts since 3 July 2026. Your dispute has been lodged in accordance with clause 1.11.2(a) of the *Queensland Public Health Sector Certified Agreement (No. 12) 2025 (EB12)*.

I wish to acknowledge that clause 1.11.2(a) of EB12 requires that Stage 1 discussions should be conducted within 24 hours. This letter confirms that your dispute has been received and is currently under review. While every effort has been made to progress this matter promptly, the 24-hour timeframe specified in the clause will not be achieved. Upon completion of the review, you will be contacted as soon as practicable to discuss the outcome of your dispute and any appropriate next steps. You will also be provided with an opportunity to raise any questions and discuss the matter further as required.

Please be advised that I am required to process leave on your behalf for the period 20 July 2026 to 2 August 2026. As at today's date, you have a remaining recreation leave balance of **41.21 hours**. Could you please advise whether you would like this recreation leave balance applied to this period? If so, the remaining hours within the fortnight would be recorded as sick leave without pay. I acknowledge that your dispute includes concerns regarding your leave entitlements. However, pending resolution of the dispute, it is necessary that your absence continues to be managed through the appropriate leave arrangements.

As the payroll cut-off for PP04 is today, I would appreciate your response as soon as possible. If I do not receive a response before payroll processing occurs, I will apply your remaining recreation leave balance to ensure you receive the available paid leave entitlement for this period.

Employee Assistance

I understand this may be a difficult time for you. Should you wish to seek further support, the Employee Assistance Program, provided through TELUS Health on [1800 604 640](tel:1800604640), is available free of charge for all employees of Metro South Health. This service is a confidential counselling and support service.

Should you wish to access this service, please contact TELUS Health on [1800 604 640](tel:1800604640) or for Aboriginal and Torres Strait Islander support, please contact [1800 816 152](tel:1800816152).

More information about the support TELUS Health can provide can be found out their website <https://app.one.telushealth.com/> or by downloading the free TELUS Health One app. You can log on to both using the following credentials:

Username: mshhs

Password: mshhs

Kind regards,
Chloe

Chloe Taylor
Switchboard Manager | Local Telecommunications Representative | Switchboard Services
Logan Hospital | Metro South | Queensland Health
P (07) 2891 9190
E chloe.taylor3@health.qld.gov.au
W www.health.qld.gov.au
A Level 2, Building 1, Cnr Loganlea and Armstrong Roads QLD 4131
T [Call me on Teams](#)



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From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Monday, 3 August 2026 11:38 AM
To: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>; LBH Injury Management
<LBH_InjuryManagement@health.qld.gov.au>; LBH_HR
<LBH_HR@health.qld.gov.au>
Cc: Heath Moran <heath.moran@together.org.au>

Subject: Notice of dispute — clause 1.11 — attendance,
roster, leave and pay from 26 June 2026

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safe.**

Dear Chloe,

I attach a notice of dispute under clause 1.11.2(a)
of the certified agreement. It is addressed to you as
my immediate supervisor because the clause
requires that.

I would prefer this resolved at Stage 1 and I am
available to discuss it at any time, including today. I
have asked that a support person and my union
representative be present.

I have raised at part 5 a question about who should
conduct the Stage 1 discussion. I make no
allegation against anyone and will attend
whichever way the Health Service prefers.

Kind regards,
Cory Shepherd
AO3, Switchboard Services, Logan Hospital
[0417 400 227](tel:0417400227)

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Re: Follow up on Enquiries

From: Cory Shepherd

coryshepherd1@hotmail.com

To: Jacqui Roberts

Jacqui.Roberts@health.qld.gov.au

Sent: Friday 28 August at 14:18

Good afternoon Jacqui,

Thank you for your time this week. I have three brief matters to raise.

First, I wish to withdraw the Stage 2 grievance referral. My preference is to work through the outstanding issues directly with you. To be clear, I am withdrawing the referral only. My concerns regarding pay, the leave debited since 3 July 2026, and the adjustments contained in the Employee Capability Checklist dated 3 July 2026 remain unresolved and in dispute. Nevertheless, I am hopeful we can work through these matters constructively.

Second, could you please provide an update on the AVAC following your discussion with Ms Taylor on 24 August?

Third, I attended an appointment with my psychiatrist, Dr Ravikumar Bangalore Krishnaiah, on 27 August 2026. Dr Krishnaiah advised that, despite the authority I provided, Queensland Health has not yet responded to his request for information.

Finally, could someone please contact Dr Krishnaiah's practice so that preparation of the report is not delayed? I would also appreciate being advised of any information being shared with Dr Krishnaiah and the matters on which their opinion is being sought.

And if there are any other updates, I would be glad to have them.

Kind regards,
Cory Shepherd
[0417 400 227](tel:0417400227)
coryshepherd1@hotmail.com

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From: Jacqui Roberts
<Jacqui.Roberts@health.qld.gov.au>
Sent: Monday, August 24, 2026 12:19:27 pm
To: Cory Shepherd <coryshepherd1@hotmail.com>
Cc: Emily Petering <emily.petering@together.org.au>;
Terry McQuillan <Terry.McQuillan@health.qld.gov.au>
Subject: RE: Follow up on Enquiries

Good Afternoon Cory

Thank you for sharing this information with me I will review and come back to you with any questions I may have.

Thank you also for confirming the time to finish our catch up, I will put this in our calendars now and you should receive an invitation very soon.

I additionally acknowledge your requests and I am speaking with Chloe this afternoon in relation to applying your leave.

Warm Regards
Jacqui

Jacqui Roberts (she / her)
Principal Consultant | Human Resources
Logan and Beaudesert Health Services (LBHS)
Logan Hospital
[Metro South Health](#) | 
e. jacqui.roberts@health.qld.gov.au | [Chat on Teams](#)
p. (07) 3542 2384 | 0487 313 927

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Monday, 24 August 2026 11:13 AM
To: Jacqui Roberts <Jacqui.Roberts@health.qld.gov.au>
Cc: Emily Petering <emily.petering@together.org.au>;
Terry McQuillan <Terry.McQuillan@health.qld.gov.au>
Subject: Re: Follow up on Enquiries

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Good morning,

I apologise for Friday and for the state I was in.

I can confirm I am available on Tuesday, 25 August 2026, between 3:00 pm and 5:00 pm.

For ease of reference, I attach:

- the QSuper letter
- the communication I believe prompted the ECC
- my movement details
- my agreement to the sharing of medical information and correspondence with my treating psychiatrist

In the circumstances, I ask to be advised, in advance, of what information is being shared with my treating psychiatrist, what questions are being asked of them, and what is proposed to be included in any correspondence with them.

In the interim, while Metro South Health seeks clarification regarding my medical information, I respectfully request that the appropriate leave be applied and that an AVAC be submitted on my

behalf to facilitate the processing of my entitlements.

Kind regards,
Cory

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From: Jacqui Roberts
<Jacqui.Roberts@health.qld.gov.au>
Sent: Monday, August 24, 2026 7:44:58 am
To: Cory Shepherd <coryshepherd1@hotmail.com>
Cc: Emily Petering <emily.petering@together.org.au>;
Terry McQuillan <Terry.McQuillan@health.qld.gov.au>
Subject: RE: Follow up on Enquiries

Good Morning Cory

Sorry technology let us down on Friday to finalise our catch up.

I have the following availability for us to conclude our discussions, can you advise which of these times would work for you, Emily has confirmed she is also available to attend at these times too

- Tuesday 25 August 2026 – Between 3pm and 5pm, or
- Friday 28 August 2026 – Between 9am and 11am

If you let me know when you can and I will book it in for us all.

Warm Regards
Jacqui

From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Tuesday, 18 August 2026 5:22 PM

To: Jacqui Roberts <Jacqui.Roberts@health.qld.gov.au>

Subject: Re: Follow up on Enquiries

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Hey Jacqui,

I can confirm that 14:30 to 16:30 works for me.

Thanks for organising this, and I look forward to catching up with you and Emily on Friday.

Kind regards,

Cory

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From: Jacqui Roberts

<Jacqui.Roberts@health.qld.gov.au>

Sent: Tuesday, August 18, 2026 3:22:54 pm

To: Cory Shepherd <coryshepherd1@hotmail.com>

Cc: Emily Petering <emily.petering@together.org.au>;

LBHS Human Resources Team 1

<LBH.HRTeam1@health.qld.gov.au>; Cory Shepherd

<Cory.Shepherd@health.qld.gov.au>

Subject: RE: Follow up on Enquiries

Good Afternoon Cory

Thank you for coming back to me and also listing all of your points you would like to discuss.

Emily has reached out this afternoon to advise she is no longer available on Friday morning – would you be free on Friday afternoon?

Thank you
Jacqui

Jacqui Roberts (she / her)
Principal Consultant | Human Resources
Logan and Beaudesert Health Services (LBHS)
Logan Hospital
[Metro South Health](#) | 

e. jacqui.roberts@health.qld.gov.au | [Chat on Teams](#)
p. (07) 3542 2384 | 0487 313 927

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From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Tuesday, 18 August 2026 11:33 AM
To: Jacqui Roberts <Jacqui.Roberts@health.qld.gov.au>
Cc: Emily Petering <emily.petering@together.org.au>;
LBHS Human Resources Team 1
<LBH.HRTeam1@health.qld.gov.au>; Cory Shepherd
<Cory.Shepherd@health.qld.gov.au>
Subject: Re: Follow up on Enquiries

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Dear Jacqui,

Thank you for your email and for including Emily Petering.

I confirm the meeting on Friday, 21 August, from 9:30 am to 11:30 am via Teams, with Emily attending. To ensure the time is used effectively, I expect to discuss the following matters:

- Restoration of my pay, including my request of 28 July 2026 regarding paid special leave.

- Recrediting of all leave debited since 3 July 2026.
- Implementation of the adjustments certified in the Employee Capability Checklist dated 3 July 2026, and my return to work.
- My requests of 3 August 2026, including the flexible working request under the Agreement, for which the decision period ends on 24 August 2026.
- The Stage 2 grievance referral.
-

If there are additional matters you intend to raise, I would appreciate receiving notice of them before Friday.

Medical position – correction

For accuracy, fitness to return to work with adjustments is not my personal view. It is the certification provided by Dr Ma in the Employee Capability Checklist dated 3 July 2026, completed on the Health Service’s own form and at the Health Service’s request.

In addition, a specialist psychiatric report responding to the Health Service’s request for medical information dated 31 July 2026 has been commissioned and will be provided once completed.

•

Leave

To maintain my income in the interim, I do not object to the Health Service processing my available sick leave and, if necessary, annual leave. However, I wish to be clear about the basis on which this occurs:

-
- Any leave processing is being undertaken by the Health Service to ensure continuity of payment and does not represent an election by me.

- My position remains as set out on 3 August 2026: this absence results from the Health Service's decision and should not be debited against my leave balances.
- This arrangement is interim only and subject to the specialist psychiatric report. Once that report is provided, I expect the certified adjustments to be implemented, my return to work to proceed, and my pay to be restored.
- All leave debited since 3 July 2026 should be recredited.
-

Please also review my payslip dated 12 August, which recorded 76 hours as sick leave without pay despite the balances identified in your email. If an AVAC is required to process the leave and correct the payslip, please arrange for this to be submitted promptly and advise if anything further is required from me.

-

QSuper

For accuracy, benefit payments ceased earlier this year following my request to the fund when I returned to work. I have not received any income protection payments since 31 May 2026 and am not currently in receipt of such payments.

The administration of the claim is a matter I am addressing directly with the fund's Claims Manager. Superannuation contributions continue to be reported through payroll in the ordinary course.

-

Thank you for arranging this meeting. I look forward to speaking with you on Friday.

Kind regards,
Cory Lea Shepherd

From: Jacqui Roberts

<Jacqui.Roberts@health.qld.gov.au>

Sent: Tuesday, August 18, 2026 10:47:48 am

To: Cory Shepherd <coryshepherd1@hotmail.com>

Cc: Emily Petering <emily.petering@together.org.au>;

LBHS Human Resources Team 1

<LBH.HRTeam1@health.qld.gov.au>; Cory Shepherd

<Cory.Shepherd@health.qld.gov.au>

Subject: FW: Follow up on Enquiries

Good Morning Cory

My apologies – I have just noticed I had sent this email to your health account only and did not include your personal, forwarding for your information in case you have not accessed your health email account.

If you could get back to me as soon as possible regarding my meeting suggestion, it would be very much appreciated

Warm Regards

Jacqui

Jacqui Roberts (she / her)

Principal Consultant | Human Resources
Logan and Beaudesert Health Services (LBHS)
Logan Hospital
[Metro South Health](#) | 

e. jacqui.roberts@health.qld.gov.au | [Chat on Teams](#)
p. [\(07\) 3542 2384](tel:(07)35422384) | [0487 313 927](tel:0487313927)

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From: Jacqui Roberts

Sent: Thursday, 13 August 2026 4:46 PM

To: Cory Shepherd <Cory.Shepherd@health.qld.gov.au>

Cc: LBHS Human Resources Team 1

<LBH.HRTeam1@health.qld.gov.au>; Emily Petering

<emily.petering@together.org.au>

Subject: Follow up on Enquiries

Good Afternoon Cory

I hope this email finds you well, I wanted to reach out to you in relation to your emails and enquiries you have made over the past couple of weeks and would welcome time to catch up with you to discuss these further to assist in resolving the concerns you have raised.

My availability is a little limited at the moment as I am on leave for the next few days but I do have time on Friday 21 August 2026 and would like to book in a minimum of about 2 hours with you to really discuss and understand your matters further. The times I have available are

- 09:30 to 11:30, or
- 14:30 to 16:30

I propose we can do this via teams and also include Emily Petering too, you will see I have included her in my email.

If you could confirm which of these times would work for you **by close of business on Wednesday 19 August**, that would be really helpful.

Whilst I understand your belief you are fit to return to the workplace; the medical evidence provided to date does not support that. Therefore, this leave would ordinarily be processed as sick leave and if no sick leave balances are available, it will automatically be processed as sick leave no pay. However, to avoid not being paid, with your approval we can apply other leave entitlements, please see below your current balances. If you could confirm what leave you wish to be applied from these balances, and we can action accordingly. You do have sick leave balances, so they should automatically be applied, and this is something we can follow up on for you.

I am aware you have a current open Qsuper claim, and we may need to advise Qsuper of any income you are in receipt of in relation to that claim.

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RE: Cory Shepherd (388372) RE: Please respond to Chloe Taylor regarding long service leave and why it can not be actioned.

From: Chloe Taylor

Chloe.Taylor3@health.qld.gov.au

To: Cory Shepherd coryshepherd1@hotmail.com,
PayrollMetroSouth

PayrollMetroSouth@health.qld.gov.au

Cc: Jacqui Roberts

Jacqui.Roberts@health.qld.gov.au, Emily Petering
emily.petering@together.org.au

Sent: Thursday 3 September at 10:27

Hi Cory,

Please see the below email from Payroll.

I understand this may be frustrating, particularly in relation to your Long Service Leave. I have requested further information from Payroll regarding why your eligibility date is showing as 04/09/2026, as I appreciate you would like some clarity around this.

Unfortunately, Long Service Leave cannot be backdated & paid prior to the date you become eligible.

I have also confirmed with Payroll this morning on the phone regarding the ADHOC payment for the 17/08/2026–30/08/2026 pay cycle. Unfortunately, this cannot be processed prior to Wednesday 9th September 2026.

I appreciate this may not be the outcome you were hoping for, and I will continue to follow up where I can, to ensure everything is clarified and processed as soon as possible.

Kind regards,

Chloe

Chloe Taylor

Switchboard Manager | Local Telecommunications Representative | Switchboard Services

Logan Hospital | Metro South | Queensland Health

P (07) 2891 9190

E chloe.taylor3@health.qld.gov.au

W www.health.qld.gov.au

A Level 2, Building 1, Cnr Loganlea and Armstrong Roads QLD 4131

T [Call me on Teams](#)



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From: PayrollMetroSouth

<PayrollMetroSouth@health.qld.gov.au>

Sent: Thursday, 3 September 2026 9:05 AM

To: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Subject: RE: Cory Shepherd (388372) RE: Please respond to
Chloe Taylor regarding long service leave and why it can
not be actioned.

Hi Chloe,

You aren't able to put in LSL leave as Cory's LSL
eligibility date is only from 04/09/2026.

I can see a log has been created for a leave audit, a
CSO is currently working on it however still in
progress.

Kind Regards,



John Layson

Client Service Officer, Metro South
Payroll Team, Meadowbrook Service
Centre

Payroll Transactional Services, Corporate
Enterprise Solutions, Corporate Services Division,
Queensland Health | Queensland Health

P 3608 5985

E John.Layson@health.qld.gov.au

W health.qld.gov.au

A Level 1, 11-13 University Drive, Meadowbrook

QLD 4131



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From: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Sent: Wednesday, 2 September 2026 4:16 PM

To: Cory Shepherd <coryshepherd1@hotmail.com>;

PayrollMetroSouth

<PayrollMetroSouth@health.qld.gov.au>

not be actioned.

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Dear Chloe,

Thank you for your correspondence confirming that all AVAC submissions lodged on 31 August 2026 have been processed.

I have now successfully reset myHR and regained access to my account. After reviewing the records available to me, I have been unable to locate any enquiry, submission, correspondence, or documentation relating to the AVAC request associated with PRN 249 863 66.

In addition, I contacted Payroll by telephone today at 13:24pm and was advised that there is no information recorded against PRN 249 863 66. Payroll further confirmed that all AVAC submissions lodged on 31 August 2026 had been processed on that date.

I was also advised by Payroll that long service leave or where a leave type cannot be processed, or where a request is rejected, the reason is ordinarily identified during the actioning process. In light of this advice, I would be grateful if you could clarify what information or response you are currently awaiting from Payroll in relation to my long service leave application.

Given that I have been advised on two occasions—on 31 August 2026 and again on 2 September 2026—that an enquiry had been submitted, I would appreciate receiving copies of the following:

- The enquiry, submission, or request that you have confirmed was lodged.

- Any correspondence, records, or communications sent to Payroll regarding my long service leave application.
- Any documentation confirming the processing, status, or outcome of the AVAC request.
- Any correspondence relating to difficulties in processing my long service leave, including any advice received as to why the leave could not be applied.
- Any responses received from Payroll concerning my long service leave entitlement or application.
-
- This matter is of considerable importance to me. The ongoing delay in resolving my leave and pay arrangements has caused significant personal hardship, and I am seeking to establish a clear understanding of the steps that have been taken and any outstanding issues that remain.
-
- To assist in resolving the matter with yourself and payroll as quickly as possible, I would be grateful if all relevant correspondence, enquiries, and records could be provided at your earliest convenience.
-

I appreciate your assistance and look forward to your response.

Kind regards,

Cory

From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Wednesday, September 2, 2026 1:00:56 pm

To: PayrollMetroSouth

<payrollmetrosouth@health.qld.gov.au>; Emily Petering

<emily.petering@together.org.au>

Subject: Fw: Cory Shepherd (388372) RE: Please respond to Chloe Taylor regarding long service leave and why it can not be actioned.

Good afternoon,

Please respond to Chloe Taylor and resolve the issue with long service leave.

Kind regards,

Cory Shepherd

From: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Sent: Wednesday, September 2, 2026 12:42:58 pm

To: Cory Shepherd <coryshepherd1@hotmail.com>

Cc: Jacqui Roberts

<Jacqui.Roberts@health.qld.gov.au>;

emily.petering@together.org.au

<emily.petering@together.org.au>; Terry McQuillan

<Terry.McQuillan@health.qld.gov.au>

Subject: RE: Cory Shepherd (388372) — application for long service leave and annual leave, and request for AVAC to be processed today

Hi Cory,

Thanks for your email.

PRN 249 863 66 has been processed for the fortnight ending 30th August 2026 and will be paid in the normal pay cycle on Wednesday 9th September 2026. I have applied S/L and A/L in lieu of S/L for this pay cycle.

Regarding your Long Service Leave from 13 July 2026, the system is currently not allowing me to apply the leave requested. I have made enquiries with Payroll and am currently awaiting their advice. I will provide an update once I receive further information.

Please see below your current leave balances as of 2nd

September 2026 – Please note that leave balances shown below are prior to AVAC being processed and may therefore change once pay cycle is complete.



If you are having trouble with access, you can call IT Support [1800 198 175](tel:1800198175) and reset your log in details.

Kind regards,
Chloe

Chloe Taylor
Switchboard Manager | Local Telecommunications Representative | Switchboard Services
Logan Hospital | Metro South | Queensland Health

P (07) 2891 9190
E chloe.taylor3@health.qld.gov.au
W www.health.qld.gov.au
A Level 2, Building 1, Cnr Loganlea and Armstrong Roads QLD 4131
T [Call me on Teams](#)



Queensland Health acknowledges the Traditional Custodians of the land across Queensland, and pays respect to First Nations Elders past and present.

From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Wednesday, 2 September 2026 11:07 AM
To: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>
Cc: Jacqui Roberts <Jacqui.Roberts@health.qld.gov.au>;
emily.petering@together.org.au
Subject: Re: Cory Shepherd (388372) — application for long service leave and annual leave, and request for AVAC to be processed today

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Follow up

Dear Chloe,

I am asking for an ad hoc payment to be processed today.

The leave has already been applied and the AVAC processed under PRN 249 863 66, so the entitlement exists, I am asking only that it be paid now rather than held to the next pay run.

I have received no wages since 13 July 2026. That is fifty-one days and three pay runs, and I have already had to give up my accommodation.

I should also mention that I am currently unable to log into MyHR. I cannot submit a leave application, check my balances, or see what has been applied to my record, so I am dependent on you and on Payroll for both the payment and for confirmation of what has been processed. If my access can be restored, I would be grateful and, in the meantime, could the information simply be provided to me by email.

If you cannot raise an ad hoc payment yourself, could you please tell me today who can, and I will make the request to them directly.

Kind regards,

Cory Shepherd

Employee number 388372

0417 400 227

coryshepherd1@hotmail.com

From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Monday, August 31, 2026 4:06:26 pm

To: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Cc: Jacqui Roberts

<Jacqui.Roberts@health.qld.gov.au>;

emily.petering@together.org.au

<emily.petering@together.org.au>

Subject: Re: Cory Shepherd (388372) — application for

long service leave and annual leave, and request for AVAC to be processed today

Dear Chloe,

Thank you for actioning this today and for the reference number — I appreciate the quick turnaround.

Four short points so the record is accurate.

1. Leave type. To confirm my application: I did not apply for sick leave — I am not unfit for work, and the Employee Capability Checklist of 3 July 2026 certifies me fit with restrictions. My application was for long service leave and, on its exhaustion, annual leave. Could you please confirm exactly which leave types and how many hours were applied for 17–30 August 2026 under PRN 249 863 66. If any personal or sick leave has been debited, could it please be re-credited and replaced in accordance with my application.

2. Hours. Could the leave please be applied at my substantive hours of 76 per fortnight rather than at 0.5 FTE. The reduced-hours arrangements this year were temporary changes to working conditions: the most recent, approved on 9 June 2026, had an effective period of 25 May 2026 to 28 June 2026 and was not extended.

No variation has been in force since 28 June 2026, and my pay advice of 12 August 2026 itself records my absence at 76.00 hours for the fortnight. If a different arrangement has been recorded for any period after 28 June 2026, could you please let me know what it is and the document it is based on.

3. The period from 13 July. My application was from 13 July 2026, being the date from which I have received no wages. I understand the long service leave question is with Payroll — thank you for raising it promptly. Once it is resolved, could the leave please be applied back to 13 July 2026 as an

adjustment, and the "NP Sick Leave" recorded for the earlier fortnights corrected at the same time.

4. Long service leave — what may assist Payroll.

My employment commenced on 25 March 2019, and my reinstatement in February 2025 took effect from 20 September 2024 with continuity of service preserved. I therefore reached seven years' continuous service on 25 March 2026 and am entitled to take long service leave under clause 22(c) of the Award. If the system is showing a later continuous service date, it may not have been corrected following my reinstatement — that would explain the error, and Payroll can verify it against my record. I have separately written to Payroll today about my service record and leave balances. Could you also confirm that the payment for 17–30 August will be processed urgently?

For completeness, everything actioned today, and any adjustments, remain on the basis set out at paragraph 4 of my email this morning — under protest and subject to re-credit.

Thanks again, Chloe.

Kind regards,

Cory Shepherd

Employee number 388372

0417 400 227

From: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Sent: Monday, August 31, 2026 3:34:24 pm

To: Cory Shepherd <coryshepherd1@hotmail.com>

Cc: Jacqui Roberts

<Jacqui.Roberts@health.qld.gov.au>;

emily.petering@together.org.au

<emily.petering@together.org.au>

Subject: RE: Cory Shepherd (388372) — application for long service leave and annual leave, and request for AVAC to be processed today

Good afternoon Cory,

Thank you for your email. I have applied your S/L and A/L in lieu of S/L for your absence from the workplace through an AVAC as requested, for the past fortnight 17th August 2026 – 30th August 2026. As you are on reduced roster 0.5 FTE, I have applied the leave as per reduced shifts - PRN 249 863 66

About your long service leave from the 13th July 2026 - the system is currently not allowing me to apply LSL, so I have made enquiries with Payroll to understand why this may be and I will get back you as soon as I have an update.

Kind regards,
Chloe

Chloe Taylor

Switchboard Manager | Local Telecommunications Representative | Switchboard Services

Logan Hospital | Metro South | Queensland Health

P (07) 2891 9190

E chloe.taylor3@health.qld.gov.au

W www.health.qld.gov.au

A Level 2, Building 1, Cnr Loganlea and Armstrong Roads QLD 4131

T [Call me on Teams](#)



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From: Cory Shepherd <coryshepherd1@hotmail.com>

Sent: Monday, 31 August 2026 10:59 AM

To: Chloe Taylor <Chloe.Taylor3@health.qld.gov.au>

Cc: Jacqui Roberts <Jacqui.Roberts@health.qld.gov.au>;
emily.petering@together.org.au

Subject: Cory Shepherd (388372) — application for long service leave and annual leave, and request for AVAC to be processed today

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Dear Chloe,

I am writing to apply for leave and to ask that the AVAC be processed today. I have copied Jacqui Roberts.

1. MY POSITION

I have not been working since 3 July 2026. I have received no wages since 13 July 2026.

On 3 July 2026 Dr Ma completed the Employee Capability Checklist on Metro South's own form. It certifies me fit with restrictions and records that usual switchboard operational duties remain suitable. I have remained ready and available to work within those restrictions throughout, and I remain so now.

My pay advice of 12 August 2026, for the fortnight 20 July to 2 August 2026, records me as on "NP Sick Leave" for 76 hours with gross pay of \$0.00. I did not apply for sick leave and I am not unfit for work.

2. WHAT I APPLY FOR

In the interim, and so that my entitlements can be processed, I apply as follows:

- Long service leave, on full pay, from 13 July 2026 being the date from which I have received no wages through to the current date and continuing; and
- when my long service leave entitlement is exhausted, annual leave, to commence immediately from that point and to continue until further notice.

To the extent that any absence over that period has already been recorded as unpaid sick leave, I ask that the coding be corrected and replaced with the leave applied for above.

I confirm I am not applying for personal leave, as I am not unfit for work.

3. THE AVAC

I ask that the AVAC be submitted and processed today, and that I be given the reference number once it has been done, together with confirmation of the pay run in which the payment will be made.

I ask this because of the financial position set out below, and because the cut-off for the next available pay run is imminent.

4. THIS APPLICATION IS MADE UNDER PROTEST, AND SUBJECT TO RE-CREDIT

This application is made under protest and without prejudice to my position, and on the following express basis:

- I remain ready, willing and able to work within the restrictions recorded in the Employee Capability Checklist of 3 July 2026, and I have been since 3 July 2026;
- I apply for this leave only because I have received no wages since 13 July 2026 and no payment has been made to me in the interim;
- my concerns regarding pay, the leave debited since 3 July 2026, and the adjustments recorded in the Employee Capability Checklist of 3 July 2026 remain unresolved and in dispute, and nothing in this application resolves, waives or narrows any of them; and
- I ask that the leave taken under this application be re-credited to me in the event that wages are paid, or found payable, for any part of the same period, or in the event that the recording of my absence over that period is later corrected or determined otherwise.

I make this application on the understanding that it does not prevent that outcome, and I reserve my position in full.

5. FINANCIAL HARDSHIP

I want to be plain about why I am asking for this to be done today rather than in the ordinary course.

I have had no income since 13 July 2026. As a consequence I have had to give up my accommodation. I am not raising this to make a point; I am raising it because it is the reason for the urgency, and because I would rather tell you than have it become apparent later.

If there is any mechanism available for an urgent or off-cycle payment in cases of financial hardship, I would be grateful if you could tell me and I will apply for it.

6. IF ANY PART OF THIS CANNOT BE ACTIONED

If any part of this application cannot be actioned today, could you please let me know today which part, and why, and when it will be actioned. A short note is entirely sufficient.

Thank you for your assistance.

Kind regards,

Cory Shepherd

Employee number 388372

0417 400 227

coryshepherd1@hotmail.com

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TABLE 1 — LEAVE REQUESTED FROM 3 JULY 2026: EVERY REQUEST, WITH THE TAB IT IS IN

Cory Shepherd (388372) · tab numbers refer to Section A, the original emails · 3 September 2026

Tab	Date	To	What was asked	What happened
1	2 Jul, 2:38 pm	(from Ms Taylor)	"Unless you advise me otherwise, I will process your shifts that you have not worked as Sick Leave – please confirm by Friday 3rd July before 2:00pm"	the coding is created
1	3 Jul, 2:49 pm	(from Ms Taylor)	"As you have not confirmed leave type ... I will continue to process as Sick leave / Sick leave no pay"	—
1	3 Jul, 3:18 pm	Ms Taylor	"could you please process the balance as ANNUAL LEAVE rather than sick leave without pay" — 29 minutes later	Sick Leave – No Pay applied every day since
2	10 Jul, 8:35 am	Ms Forrest	shifts to be "treated as PAID TIME and ... not deducted from my leave"	unanswered
2	13 Jul, 4:39 pm	Injury Mgmt	"I ask again" — paid time; the basis in writing if refused	15 Jul: pay refused
3	28 Jul, 5:39 pm	Injury Mgmt	contests the sick-leave-no-pay coding	holding replies
4	5 Aug, 7:30 am	Stage 1	pay restoration; re-credit of leave debited since 3 July	none
5	24 Aug, 11:13 am	Ms Roberts	"the appropriate LEAVE BE APPLIED and ... an AVAC be submitted"	"speaking with Chloe this afternoon"
5	28 Aug, 2:18 pm	Ms Roberts	AVAC update	none
6	31 Aug, 10:59 am	Ms Taylor	application: LSL from 13 Jul; annual leave on exhaustion; AVAC today; "I confirm I am not applying for personal leave"; under protest, subject to re-credit	one fortnight at "0.5 FTE", with sick leave; LSL enquiry 4469554
6	31 Aug, 4:06 pm	Ms Taylor	76 hours, not 0.5 FTE; no sick leave; the period from 13 Jul; service dates	—
6	2 Sep, 11:07 am	Ms Taylor	ad hoc payment today	"cannot be processed prior to 9 September"
6	3 Sep	(from Payroll / Ms Taylor)	eligibility date "04/09/2026"; leave audit opened; no backdating; no ad hoc before 9 Sep	—

The leave type was confirmed at 3:18 pm on 3 July, twenty-nine minutes after the message saying it had not been. The objection to the "Sick Leave – No Pay" coding was made that day and on every occasion since — before any question of long service leave eligibility arose.

TABLE 2 — PAYMENT: WHAT IS TO BE ACTIONED, BY PAY PERIOD

Fortnight	What applies	Hours	Action	Pay date
3 Jul – 2 Aug	“Sick Leave – No Pay” applied from 3 Jul (and to shifts before it, per the email of 2 Jul) against the instruction of 3 Jul 3:18 pm. Paid nil on 15 Jul, 29 Jul and 12 Aug	76	Correct the coding from the first date it was applied; AVAC to be submitted (C13 §2); review of pay entitlements from 3 Jul (C13 §9), with the leave audit; long service leave from 13 Jul on the agreement’s dates	missed
3 – 16 Aug	Paid nil on Wed 26 Aug — the “most recent prior pay period” in the C13 definition of an ad hoc payment	76	AD HOC PAYMENT NOW — enquiry 4471091, lodged Wed 2 Sep (C13 §8). Coded as long service leave from 13 Jul; failing that, recreation leave 51.31 hrs without prejudice, re-credited when LSL is applied. AVAC to be submitted today	missed — pay today
3 Jul on	SPECIAL LEAVE ON FULL PAY — Directive 12/24 cl 6.1 (applies via EB12 cl 9.12); not debited from any leave account. Applied for 28 Jul (Tab 3, point 4) and 5 Aug (Tab 4). No decision communicated	76	Delegate’s decision in writing, with reasons, addressing cl 6.5 — reason, duration, impact of refusal. If approved, recreation leave and LSL re-credited	—
17 – 30 Aug	AVAC processed — process no. 24926366. Applied at “0.5 FTE” with “S/L and A/L in lieu of S/L”	should be 76	Confirm in writing: gross, hours, leave types. If at 0.5 FTE, adjust in the next run	Wed 9 Sep
31 Aug – 3 Sep	Pre-eligibility on Payroll’s date; currently “Sick Leave – No Pay”	76	Audit; long service leave from 13 Jul covers it; wages for the held-out period remain claimed	Wed 23 Sep
4 – 13 Sep	LONG SERVICE LEAVE, full pay, from Thu 4 Sep at the latest — Payroll’s own eligibility date	76 (38/wk)	Enter now; no further “Sick Leave – No Pay” from 4 Sep	Wed 23 Sep
14 Sep on	Long service leave continuing until further notice	76	Continuing	Wed 7 Oct ...

An ad hoc payment “enables employees to request a payment that was missed or requires correction outside of the regular pay day schedule without waiting for the next pay cycle” (HR Policy C13, QH-POL-188, §8). One was processed on 11 Mar 2025 (log 4045255). A line manager notified of an incorrect wage payment “must take all steps to rectify the error” (§2).

All leave applied for is applied for under protest and subject to re-credit, on the basis set out in the application of 31 August (Tab 6, 31 Aug 10:59 am, paragraph 4). Certified fit with restrictions since 3 July 2026; ready and available to work throughout.

Payment of salaries and wages

Human Resources Policy C13 (QH-POL-188)

Purpose

This policy outlines Queensland Health (the department and hospital and health services) and its employees' responsibilities in the management of forms and processes related to payment of salary, wages and pay amendments.

Application

This policy applies to all employees of the Department of Health and Health Service Employees who are paid through the Queensland Health payroll system. This policy does not apply to Queensland Ambulance Service employees paid under separate payroll systems.

Policy

1 Principles

The following principles apply to the payment of salary and wages, and related processes:

- **Timeliness:** Salaries and wages must be processed within the timeframes prescribed by the *Industrial Relations Act 2016*, Queensland Government Directives (including Public Sector Commission (PSC) and Minister for Industrial Relations Directives), legislation, and certified agreements.
- **Transparency and accuracy:** Employees, line managers, and pay support staff must have access to guidelines and support to fulfill their responsibilities.
- **Compliance:** All payments, deductions, and recovery processes must comply with legislation, Health Employment Directives, Queensland government Directives, policies, and certified agreements. Payroll processes will be subject to regular audits for compliance and continuous improvement.

2 Payment of salary and wages

The Queensland Health fortnightly pay period commences on a Monday and concludes on the Sunday at the end of the fortnight. Payments to employees are made in arrears with payment being made by electronic funds transfer to the employee's nominated financial institution.

The PSC *Directive 17/13 Pay Date for Employees of Queensland Health* prescribes that the pay date for employees of Queensland Health will be no later than ten calendar days after the completion of the fortnightly pay period.

Employees will receive a payslip available electronically in *myHR* prior to pay day Wednesday. The pay advice explains how an employee's pay amount has been calculated in terms of:

- gross and net pay
- hours and dates worked (including adjustments from previous pay periods if applicable)
- specific deductions including mandatory deductions (e.g. taxation)
- voluntary deductions (e.g. salary sacrifice)
- employer superannuation contributions
- leave taken
- allowance payments, if applicable.

Employees should review their payslip on *myHR* within two days of the payslip being made available. Should an employee identify they have been paid incorrectly, the employee is to raise the error with their line manager or through *myHR* as soon as possible.

Line managers, when notified by an employee of an incorrect wage payment, must take all steps to rectify the error including but not limited to:

- assisting the employee
- preparing and submitting further forms if required
- liaising with Payroll to correct the error, where appropriate.

Line managers must ensure their team's human resource and payroll information is up to date and actioned in a timely manner and within specified timeframes, where applicable.

3 Employees in multiple engagements

Employees who work simultaneously in multiple engagements across Queensland Health, i.e. aggregate or concurrent employment arrangements, are to refer to the Guideline for Management of aggregate and concurrent employment for details regarding the processing of salary, wages and payroll.

4 Payroll and Human Resource form management

Queensland Health uses a range of different electronic forms to enable timely and accurate payment of employee pay. Queensland Health payroll systems enable Queensland Health to meet its statutory obligations including maintaining an employee register, record of calculation of an employee's pay and payment of wages. Where a payroll issue cannot be resolved between the employee and line manager, either the employee or line manager can escalate the issue to Payroll Services.

4.1 Responsibilities of employees

Employees must submit complete, accurate and timely requests or amendments via *myHR* or Infor WFM (where applicable) within 24 hours or as soon as reasonably

practicable as it relates to time and attendance. For example, in the case of unplanned leave, the form must be submitted on the employee's first day back to work, this would generally be considered as soon as reasonably practicable. Should this delay result in incorrect payment for an employee, the line manager must discuss with the employee corrective action to be undertaken (e.g. submission of a leave form).

Employees must submit or approve all other applications (e.g. long service leave applications, professional development leave requests, movement forms) prior to commencement of the relevant planned leave or change in work arrangement.

Employees must use the Employee Self Service menu in *myHR* to update all changes to personal details immediately.

4.2 Responsibilities of line managers

Line managers must ensure employees have adequate time within their rostered period of work to submit payroll forms and review their roster.

All planned rosters must be approved by an employee and line manager prior to being submitted for processing. Evidence of roster approval must be retained in accordance with local requirements.

Line managers, upon receipt of a *myHR* form or application, must action this form within two days or prior to 5pm Monday following the roster period end date, whichever is sooner. All roster variations must be submitted at the end of the affected shift through a daily staffing variance (DSVF) or attendance variation and allowance claim (AVAC) form, or through the IWFM rostering solution (where applicable). Where this is not possible, the line manager must submit the roster variation the next business day or within 24 hours of the roster period end date, whichever is sooner.

Line managers should ensure employees are recorded in the payroll system in accordance with the position and work unit in which they are actually performing their work duties. It is not acceptable to simply place employees "against" positions they are not actually working in. For rotations, placements, secondments a "seconded out" position may be used for example where the employee is working in an external entity.

Line managers must ensure all employees' positions are correctly flagged for Fringe Benefit Tax (FBT) in the payroll system, i.e. consistent with the table of Designated Eligible Business Areas in the Public Hospital FBT Exemption Cap and Salary Packaging Arrangements Finance Practice Statement.

FBT exemption cap eligible business units failing to meet these requirements may jeopardise their ongoing access to the FBT cap (which is not an employee entitlement).

For those employees on long-term leave without pay or employees on WorkCover or Income Protection, line managers are required to ensure compliance with *HR Policy G4 Absence management* and related guidelines.

4.3 Non-compliance by an employee or line manager

Non-compliance by an employee or line manager with submission of timely and accurate payroll forms may lead to payment delays and inaccuracies in wage calculation.

Where an employee or line manager has not made reasonable efforts to comply with this Policy, and non-compliance is ongoing, the matter may be referred to the local Human Resources team for advice. The relevant delegate may consider managing the matter under the Positive Performance Management process, as outlined in *Human Resources Policy G9 – Positive Performance Management* for further ongoing non-compliance.

5 Submission timeframes

The submission of forms must be complete, accurate and timely. The form submission timings in this section are separate from any required notice periods for taking leave, which are specific in the relevant HR Policy. Notice periods support operational planning with submission timeframes supporting pay accuracy, processing, and data integrity.

Form type	Submission deadline	Approval requirement	Notes
Leave forms	Action within two days or prior to 5pm Monday following the roster period end date, whichever is sooner	Line manager with HR delegation	Ensure supporting documentation is attached.
Overtime	Pre-approved or within three days of the overtime being performed	Line manager with HR delegation	Justification required for retrospective approvals.
Roster variations	By the end of the affected shift or next business day	Line manager	Must use Daily Staffing Variance Form (DSVF) or Attendance Variation and Allowance Claim (AVAC)
Ad hoc requests	5:00 PM on pay day Wednesday		Include relevant Process Reference Number (PRN).

The submission of rostering changes for organisational units on IWFM must be complete, accurate and timely within the rostering cutoff.

IWFM rostering change	Submission deadline	Approval requirement	Notes
Leave forms	Action within two days or prior to 5pm Tuesday following the roster period end date, whichever is sooner	Line manager with HR delegation	Ensure supporting documentation is attached.

Roster variations including emergent leave, overtime, on-call / recalls	By the end of the affected shift or next business day.	Line manager with HR delegations must be approved in the Supervisor Approval Worksheet by 5pm Tuesday following the roster cutoff.	Must use Daily Staffing or other relevant IWFM electronic rostering process. Justification must be provided for retrospective overtime approvals.
Ad hoc requests	5:00 PM on pay day Wednesday		Include relevant Process Reference Number (PRN).

6 Line managers signing on behalf of employees

Line managers and employees should ensure that employees complete and sign forms submitted to *myHR*. To ensure access to entitlements and/or correct pay to employees line managers may submit leave requests on behalf of employees provided:

- The employee's request for leave is documented in writing (e.g. email, text message, or hard copy); and
- Any required supporting documents (e.g. employee's written request for leave, medical certificates for sick leave) are sourced and retained.

For leave types requiring mutual agreement (e.g. annual or long service leave), line managers must not unilaterally place employees on leave, unless permitted to do so under an industrial instrument or the *Industrial Relations Act 2016*. An employee's written consent must be retained by the line manager. Line managers are required to upload relevant supporting documents to *myHR* to maintain an accurate record of the request.

Where an employee's consent is required to vary an employee's employment terms*, and to avoid any financial disadvantage to an employee, line managers may submit *myHR* forms provided:

- the form is approved by the employee before submission to *myHR*
- the supervisor retains a copy of the employee's written consent to the form being submitted
- the signed form is obtained and uploaded to *myHR* as soon as possible noting the processing reference number.

*For the purposes of this paragraph, employment terms may include the employment status or type (e.g. permanent or part-time).

7 Industrial disputes

If the outcome of an industrial dispute results in changing employee payments, the line manager, in consultation with their local Human Resources team is to seek advice from Payroll Services and where appropriate from legal teams, and upon agreement, determine the most appropriate approach to ensuring employees are paid correctly. For

example, depending on the number of impacted employees, the most appropriate approach could be through a facilitated submission with the line manager and where required, delegate's approval.

8 Ad hoc payment process

The ad hoc payments process enables employees to request a payment that was missed or requires correction outside of the regular pay day schedule without waiting for the next pay cycle. The ad hoc payment process requires:

1. Employees should review their payslip, generally available from each Monday of pay week, via *myHR* to ensure their pay is accurate.
2. If any pay discrepancies are identified, employees must promptly inform their line manager and submit a corrective payroll form, if this has not already occurred.
3. Line managers and employees are responsible for submitting payroll forms as soon as possible.
4. The employee can request an ad hoc payment through:
 - lodgement of the ad hoc payment request in *myHR*
 - contacting Payroll Services
 - in the event an employee is unable to access *myHR* or contact Payroll Services, the line manager can request an ad hoc payment on their behalf.
5. To enable prompt receipt of the payment, ad hoc payment requests should be lodged by 5pm payday Wednesday to ensure payment is received before the next regular pay day schedule.
6. Due to Australian Taxation Office reporting requirements, it is acknowledged that at end of financial year, ad hoc payments may be delayed as advised through state-wide communications of a short block-out period.

9 Employee requested review of pay entitlements

When an employee identifies that a potential underpayment (or overpayment) occurred prior to their most recent pay, or considers their pay may be continuously incorrect, the employee is to promptly advise their line manager regarding incorrect wage payments in the first instance. Additional support to employees and line managers is available through the local Payroll and Human Resources teams.

If an overpayment occurs, refer to *HR Policy C48 – Overpayments and loans*.

10 Conversion of annual amounts to fortnightly equivalents

Annual salaries included in Awards or Certified Agreements are for information purposes only. Payment is to be made in accordance with the fortnightly salaries shown.

Annual allowances are converted to a fortnightly equivalent by dividing the amount by 26.0892857142.

Legislation and related documents

- Public Sector Act 2022
- Public Sector Regulation 2022

- Industrial Relations Act 2016
- PSC Directive 17/13 Pay Date for Employees of Queensland Health
- HR Policy C48 – Overpayments and loans (QH-POL-184)
- HR Policy C60 – Overtime (QH-POL-185)
- HR Policy C47 – Aggregate and concurrent employment (QH-POL-301)
- Guideline for Management of aggregate and concurrent employment (QH-GDL-301-1)
- Human Resources Policy G9 – Positive Performance Management

Delegation

The delegate is as listed in the relevant HR Delegations Manual and the Expenditure Delegation Manual, as amended from time to time.

Definitions

Term	Definition
Ad hoc payments	An ad hoc payment is a special payment option available for Queensland Health employees if they identify they are missing pay in the most recent prior pay period, and seek the payment prior to the next pay day. Ad hoc payment process is not to be used for payment of missed pay for extended periods. Refer to section 9: Employee requested wage review, for further information on continuous incorrect pay.
Payroll form	Document or digital template/system used to record and process employee remuneration for a given pay period.
Queensland Health	Queensland Health includes all divisions of the Department of Health and all Hospital and Health Services.

History

Date	Policy change
23 June 2025	Modernisation of the policy by clarifying roles and responsibilities, introducing clear submission timeframes for payroll actions, and removing payroll deduction governance to be a guideline and clarifying actions for signing on behalf of employees.
June 2020	Policy application amended as a result of changes to the Hospital and Health Boards (Changes to Prescribed Services) Amendment Regulation 2019.

Date	Policy change
June 2019	Policy formatted as part of the HR Policy review Policy amended to: • update references and naming conventions • include reference to aggregate and concurrent employment arrangements • clarify pay period and pay day • clarify recovery of unpaid wages timeframe • move information regarding use of attendance variation and allowance claim forms from Attachment One to the body of the policy • clarify the requirement for the delegate to have received appropriate supplementary documentation (e.g. medical certificate) when leave is included on an AVAC (section 4) • include payroll deductions governance and operating principles as outlined in Attachment One
May 2014	• Policy reviewed as part of the Queensland Ambulance Service (QAS) HR Policy Integration project. • Policy not applicable to QAS employees.
September 2013	• Policy formatted as part of the HR Policy Simplification project. • Deletion of clause 7.2 Payroll Deductions – Union Fees/Subscriptions in line with amendments to the <i>Industrial Relations Act 1999</i>
February 2013	• Amended section 7.3 to include other types of leave that require supplementary documentation.
October 2012	• Amended to add sections 7.3, 7.4 and 7.5 to reflect changes to payroll processing requirements. • Amended to update references.
July 2008	• Amended to reflect <i>Public Service Act 2008</i>
June 2008	• Developed as a result of the HR Policy Consolidation Project
Previous	• IRM 5.2 Conversions of Annual Amounts to Fortnightly Equivalents • IRM 5.3 Payroll Deductions – Union Fees/Subscriptions

DIRECTIVE 12/24

Supersedes: 05/17

Minister for Industrial Relations Directive: Special Leave

1. Purpose:

To prescribe entitlements and conditions for special leave.

2. Effective date: 30 September 2024**3. Legislative authority:**

- 3.1 Section 223 of the *Public Sector Act 2022* (PS Act).
- 3.2 Section 228 of the PS Act outlines the relationship between a directive and an Act or subordinate legislation, including how to deal with inconsistencies.
- 3.3 Section 229 of the PS Act outlines the relationship between a directive and industrial instrument, including how to deal with inconsistencies.

4. Application:

- 4.1 This directive applies to industrial instrument employees (i.e. employees who are covered by an award, certified agreement or arbitration determination) who are:
 - (a) public service employees; or
 - (b) public sector employees employed under the establishing legislation¹ of the following entities:
 - (i) Queensland Health;²
 - (ii) Hospital and Health Services;
 - (iii) Queensland Building Construction Commission;
 - (iv) Queensland Building Construction Commission Employing Office;
 - (v) Queensland Fire and Emergency Services (other than auxiliary fire officers);
 - (vi) Residential Tenancies Authority;
 - (vii) Residential Tenancies Employing Office;
 - (viii) Trade and Investment Queensland; or
 - (ix) Office of the Queensland Integrity Commissioner.
- 4.2 This directive does not apply to casual employees (except in relation to unpaid Bereavement Leave and unpaid Compassionate Leave).

¹ For example, the establishing legislation of the Queensland Building and Construction Employing Office is the *Queensland Building and Construction Commission Act 1991*.

² For avoidance of doubt, this includes Health Service Employees employed by Queensland Health (Department of Health), but does not include Queensland Ambulance Service employees appointed under the *Ambulance Service Act 1991*.

5. Entitlement

- 5.1 An employee, as defined in this directive:
- (a) **may** be granted special leave either on full pay or without pay as provided for in clause 6;
 - (b) **must** be granted special leave of absence either on full pay or without pay as provided and where indicated in Schedule One.
- 5.2 Unless otherwise indicated, leave entitlements apply to part-time employees on a pro-rata basis.
- 5.3 Certain parts of this directive apply to public service officers only. Where this occurs, the word 'officer' will be used instead of 'employee'.
- 5.4 Leave prescribed in this directive may be converted to an hourly basis for the purpose of entitlement, granting and recording of leave. Leave is based on the number of hours that the employee would have worked. Schedule Three provides conversion formulas.
- 5.5 If an employee is rostered to work a specific number of hours on a day and the employee is absent from duty on that day, or part of it, the period of leave will be the number of hours that the employee was rostered to work on that day but did not work. This applies even though the period of leave may be different to the employee's daily hours (as defined).
- 5.6 Where a public holiday or substituted day under the *Holidays Act 1983* occurs, during an absence on special leave without pay, employees are not entitled to be paid for the public holiday.

6. Discretionary leave

- 6.1 A chief executive **may** approve paid leave for employees for any purpose, with duration appropriate to the purpose of the leave.
- (a) Leave approved under clause 6.1 must not exceed more than five (5) working days per year per reason unless the chief executive considers that circumstances warrant the granting of additional paid leave. Any additional leave must be reasonable and proportionate to the circumstances.
 - (b) Examples of reasons could include, but are not limited to, those specified in Schedule Two.
- 6.2 A chief executive may approve unpaid leave for employees for any purpose and for any duration.
- 6.3 A chief executive may approve purchased leave, a form of unpaid leave, for any period determined by the chief executive in accordance with Queensland Government policy, guidelines and/or industrial instruments.
- 6.4 A chief executive may approve a combination of paid and unpaid leave under this directive.
- 6.5 In determining an application for leave under clause 6.1 or clause 6.2, a chief executive must consider:
- (a) the reason the leave is requested;
 - (b) the duration of the requested leave;
 - (c) if applicable, for fixed term temporary employees, the duration of the person's employment (including end date);
 - (d) the impact on the employee if the requested leave is not approved.

7. Taking leave

- 7.1 Other than as provided for in Schedule One, leave is always to be subject to the demands of a particular situation and is to be taken at entity convenience.

8. Recall from or cancellation of leave

- 8.1 Clause 8 does not apply to leave granted in accordance with Schedule One.
- 8.2 A chief executive may, if entity circumstances require it:
- (a) recall an employee from special leave; or
 - (b) cancel the approval or granting of any special leave; or
 - (c) defer the taking of that leave.

9. Definitions

Except where otherwise defined, terms in this directive are consistent with their meanings in the *Industrial Relations Act 2016* and/or the *Public Sector Act 2022*.

Casual employee includes both long term casual employees and short term casual employees.

Daily hours means:

- the number of ordinary daily working hours of an employee as specified in the relevant industrial instrument; or
- in any other case – the number of hours specified in the relevant industrial instrument as the average number of hours per working day of an employee during a pay period or other period that is reasonable in the circumstances.

Employee means an employee to whom this directive applies.

Full pay for the purpose of this directive means the employee's ordinary rate of pay and is inclusive of any fixed allowances that are part of the regular fortnightly pay, excluding shift penalties and consolidated shift allowance payments.

Immediate family includes:

- the employee's spouse; or
- a child, ex-nuptial child, step-child, adopted child, ex-foster child of the employee or employees' spouse; or
- parent, grandparent, grandchild, sister or brother of the employee and of the employee's spouse (such as the employee's mother-in-law, father-in-law, grandparent-in-law, brother-in-law, sister-in-law, son-in-law, daughter-in-law).

The list of family members provided for in this definition is not exhaustive.

Entities have the discretion to grant bereavement leave to employees on the death of family members that are not expressly provided for in this definition. Cultural and personal reasons may be taken into consideration when an entity makes a decision.

Industrial instrument for the purposes of this directive, except for clause 3 (Legislative Authority) and clause 4 (Application), means an award, certified agreement, contract, directive or determination made under section 180 of the *Industrial Relations Act 2016*.

Officer means a public service officer, and has the meaning given to it under section 14 of the *Public Sector Act 2022*.

SCHEDULE ONE – NON-DISCRETIONARY SPECIAL LEAVE

Category	Entitlement	Conditions of Approval
1. Election Leave An employee who contests a state or local government election shall be granted leave for campaigning purposes.	Total period not exceeding two (2) months.	Applies to employees. Leave may be granted either as a charge against accrued recreation leave, long service leave or without salary.
2. Local Government Leave An employee who has been elected to hold office as mayor, chair or member of a council is to be granted special leave for attendance at council meetings or for undertaking council business.	<u>Leave on Full Pay</u> • Employee elected as mayor, commissioner or chair – Up to a maximum of five (5) working days per calendar year non-cumulative. • Employee elected to other positions – Up to a maximum of three (3) working days per calendar year non-cumulative. <u>Leave Without Salary</u> Additional leave as required.	Applies to employees. An employee who has been granted special leave on full pay to attend council meetings or business and who receives payment by the council for attending must submit the payment to the chief executive for reimbursement to entity funds. Except where the salary of the employee is less than the amount received for the time spent on council business, the employee is entitled to retain the difference between the salary and the amount paid by the council. When determining the amount paid by council, expenses for travel and accommodation are not to be taken into account Where an absence may cause disruption to transport or essential services, the granting of leave is subject to approval having regard to all the circumstances. These conditions do not apply to employees who are elected as full-time councillors, and who are paid a salary for holding such office.

Category	Entitlement	Conditions of Approval
3. Australian Volunteers International An officer who desires to undertake service overseas with the Australian Volunteers International shall be granted leave without salary.	Up to two (2) years without salary.	Applies to officers only. The officer shall make arrangements regarding superannuation contributions in accordance with relevant legislation.
4. Declared Emergency Situation or Disaster Situation An employee who has been directed to assist in an emergency situation or a disaster situation in accordance with the <i>Public Safety Preservation Act 1986</i> or the <i>Disaster Management Act 2003</i> shall be granted leave for this purpose. Where an employee is not entitled to paid leave in an emergency situation or a disaster situation, they may still be entitled to unpaid “emergency service leave” in accordance with the requirements of section 118 of the <i>Industrial Relations Act 2016</i> .	Leave on full pay as required. Unpaid leave, for a period that is “reasonable in the circumstances” pursuant to section 118(2) of the <i>Industrial Relations Act 2016</i> .	Applies to employees . Applies to employees . Must advise the employer in writing and give the employer sufficient evidence to satisfy a reasonable person that the employee took the emergency service leave because the employee was engaged in a voluntary emergency management activity.

Category	Entitlement	Conditions of Approval
5. Defence Reserve Forces Leave		
An employee who is a member of the Reserve Forces is to be granted leave for –	<u>Leave on Full Pay</u>	Applies to employees .
(a) attendance for reserve service, including but not limited to; training, camps, field exercises, schools, classes or courses and/or deployment situations and may involve more than one (1) absence in a financial year	Up to a maximum of – (a) 32 calendar days per financial year (Army Reserve, Naval Reserve and Air Reserve) plus an additional 14 calendar days per financial year during employee's first year of reserve service, where attending recruit/initial training.	Where possible, at least three (3) months notice prior to commencement of leave should be provided. Evidence of the necessity for the employee's attendance and proposed length for reserve service in the form of a Training or Deployment Notice must be submitted with the employee's application and, at the conclusion of the event, the employee must submit a certificate of attendance from the Commanding Officer.
(b) travel from and to the employee's place of residence to attend continuous training OR to participate in an advance or rear party in connection with a period of continuous training	(b) Up to a maximum of four (4) working days per financial year. <u>Leave Without Salary</u> Additional leave for training, deployment and travel as required	Calendar days are inclusive of non-work days, weekend days and public holidays, meaning leave is debited based on the number of calendar days specified in the Training or Deployment Notice, not the number of days absent from work. Additional leave is subject to certification by the Commanding Officer that the additional days are required.
<u>Employer Support Payments</u>		
Entities are expected to pursue Employer Support Payment entitlements from the Department of Defence when an employee accesses paid or unpaid Defence Reserve Forces Leave. Details of the financial benefits for employers of reservists provided under the Employer Support Payment Scheme can be obtained from the Defence Reserve Support Council on their website www.reserveemployersupport.gov.au .		

Category	Entitlement	Conditions of Approval
6. Bereavement Leave		
(a) An employee (other than a casual employee) is entitled to bereavement leave on full pay on the death of a member of the employee's immediate family or household or if the employee, or the employee's spouse is pregnant and the pregnancy ends other than by the birth of a living child. The leave is to be granted for a death occurring either within Australia or overseas.	(a) In relation to each deceased person – two (2) days bereavement leave on full pay.	Applies to employees (including casual employees, where specified). The employee (including a casual) is to furnish evidence of the death or funeral arrangements that are satisfactory to the chief executive.
(b) A casual employee is entitled to bereavement leave on the death of a member of the employee's immediate family or household. The leave is to be granted for a death occurring either within Australia or overseas.	(b) In relation to each deceased person – two (2) days unpaid bereavement leave.	
(c) An employee (including a casual) may be granted additional bereavement leave without pay.	(c) As determined by the chief executive.	
(d) If an employee (including a casual) reasonably requires extra time to travel to and from the funeral or other ceremony for the death.	(d) An amount of unpaid bereavement leave equal to the time reasonably required for the travel.	
Note: Refer to clause 9 for the definition of 'immediate family'.		

Category	Entitlement	Conditions of Approval
7. Compassionate Leave (a) An employee (other than a casual employee) is entitled compassionate leave on full pay on each occasion when a member of the employee's immediate family or household: (i) contracts or develops a personal illness that poses a serious threat to the person's life; or (ii) sustains a personal injury that poses a serious threat to the person's life. (b) A casual employee is entitled to unpaid compassionate leave on each occasion when a member of the employee's immediate family or household: (i) contracts or develops a personal illness that poses a serious threat to the person's life; or (ii) sustains a personal injury that poses a serious threat to the person's life.	(a) Two (2) days per occasion. (b) Two (2) days unpaid per occasion.	Applies to employees (including casual employees, where specified). The employee (including a casual) must give the employer sufficient evidence to satisfy a reasonable person that the employee was taking compassionate leave because a member of the employee's family or household's life was threatened by personal illness or personal injury.

SCHEDULE TWO – DISCRETIONARY SPECIAL LEAVE

Entitlement
Up to five (5) working days paid leave per year per reason or such additional leave determined to be appropriate by the chief executive may be granted in accordance with clause 6.1(a).
Category
1. Emergency or Compassionate Grounds An officer may be granted leave that is reasonably required either for an emergency situation or on compassionate grounds which fall outside the scope of “Compassionate Leave”, as defined in clause 7 of Schedule One.
2. Sporting Competitions An officer may be granted leave for sporting competitions if they are selected as – (a) a competitor, team manager or team coach of a state or national team participating at a major national or international sporting competition; or (b) an umpire or referee at such competitions. The term “competitor” includes reserve competitors. Single competitors selected in events such as the marathon would be included in the category of “state or national team”. An officer who is selected as a competitor or official at the Olympic Games, Commonwealth Games or International Games for the Disabled may be granted leave for the Games.
3. Seminars, Conferences other than as an Official Representative An officer who is not an official representative and attends a seminar, conference, etc. within Australia or overseas may be granted leave for the event if – (a) the seminar, conference, etc. is associated with the officer's area of employment; and (b) the officer is a member of the society or association responsible for the event or contributes substantially to the event by way of delivery of a paper or some other way
4. Returning Officers An officer appointed as a returning officer at a state election may be granted leave to discharge electoral duties.
5. Floods, Cyclones, Bushfires, etc. An employee who is prevented from attending the employee's normal place of employment because of floods, cyclonic disturbances, severe storms or bushfires may be granted leave in the following circumstances – (a) it is not practicable for the employee to attend for duty at another Government office; (b) the employee is absent from their usual place of residence on approved leave or during a weekend and is unable to return in sufficient time to attend the normal place of employment or it is not practicable to attend duty at another Government office; (c) where the employee is required to return home before the employee's usual ceasing time to ensure personal safety, the protection of the employee's family and property or the availability of transport facilities which may be disrupted or discontinued because of weather or environmental conditions; (d) where the employee must, of necessity, remain at home to safeguard the employee's family or property;

- (e) where the employee remains at home to have temporary repairs effected, restore belongings, clean up etc;
- (f) where the employee is travelling on transfer and is unavoidably delayed from arriving at the destination. (An officer may also be allowed reasonable expenses necessarily incurred for accommodation and meals for the officer and family.)

Category

6. Emergency Management Courses

An **employee** who is selected to attend an emergency management course or seminar organised by the Australian Emergency Management Institute, Mt Macedon, Victoria or the State Emergency Service may be granted leave to attend the course or seminar.

7. Attendance at Emergencies

An **employee** who is a member of the State Emergency Service, voluntary member of a local fire fighting unit, member of a Rural Fire Brigade, auxiliary of a Fire Brigade, Honorary Ambulance Officer, St. John Ambulance volunteer or any other emergency service volunteer will be granted leave when called out for emergencies or to fight fires.

8. Platelet etc Donors

An **employee** who is selected as a donor for the apheresis procedure may be granted leave for this purpose.

9. Blood Donors

An **employee** who attends a recognised facility as a donor may be granted leave for the purpose of donating blood.

10. Pre-Retirement Seminars

An **employee** who attends a pre-retirement planning seminar may be granted leave to attend the seminar.

11. Other Exceptional Circumstances

This leave type may be used for many and varied circumstances and should be granted to assist **employees** particularly on compassionate grounds. Applications of this nature must be handled confidentially and with sensitivity. Such circumstances may include but are not limited to the following examples:

- (a) an employee who is dealing with matters arising from or as a result of family or domestic violence;
- (b) an employee who is undergoing an intensive course of medical treatment from specialist practitioners;
- (c) an employee who is dealing with the terminal illness of a partner, child or other close family member (recognising kinship for Aboriginal and Torres Strait Islander peoples);
- (d) an employee who is mourning the death of a partner, child or other close family member;
- (e) an employee whose home and property has been destroyed by a natural disaster such as a flood or cyclone;
- (f) an employee who is a victim of a violent crime.

The above are examples only. There are many other possible scenarios where it would be appropriate to approve "special leave for other exceptional circumstances".

It is not mandatory for the employee to have exhausted other forms of paid leave prior to accessing "special leave for other exceptional circumstances".

In cases of family or domestic violence, leave should be granted to provide the employee with time off to:

- seek safe housing
- attend medical/counselling appointments
- attend court hearings
- access legal advice
- organise alternate care or education arrangements for their children
- rebuild support networks with children, family and others

SCHEDULE THREE – LEAVE CONVERSION FORMULAS

1. Conversion of entitlements

- 1.1. This schedule sets out the formulas to be utilised when converting leave accruals to an alternative accrual basis.

2. Leave entitlement in hours

- 2.1. If an employee's leave entitlement in a directive is expressed in working days, the leave entitlement may be read as if it were expressed in working hours using the following formula:

$$LE = WD \times DH$$

Where:

LE = Leave Entitlement

WD = Working Days

DH = Daily Hours (as defined by an industrial instrument)

Provided that the leave entitlement applies to part-time employees on a pro rata basis.

3. Variation of ordinary working hours

- 3.1. If an entity's system for recording particulars of leave granted to an employee is based on hours and the daily hours (as defined by an industrial instrument) of an employee change, the leave entitlements accumulated by the employee are also to be recorded in hours.

$$LAC = LBC \times \frac{HAC}{HBC}$$

Where:

LAC (leave entitlement after change) = the hours of leave to which the employee is entitled after the change.

LBC (leave entitlement before change) = the employee's leave entitlement expressed in hours before the change.

HAC (daily hours after change) = the employee's daily hours (as defined by an industrial instrument) after the change.

HBC (daily hours before change) = the employee's daily hours (as defined by an industrial instrument) before the change.